



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 8891 (EXTENSION)
FIRST REVISION June 29, 1990

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 8891 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to January 31, 1997. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.

for Suzanne Hodgepelt
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

FEB 2 1995

(DATE)

Dist: FHWA FRA USCG FAA

EXEMPTION HOLDER

APPLICATION DATE

BIC Corporation
Milford, CT

December 1, 1994

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.



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DOT-E 8891

1. Bic Corporation, Milford, Connecticut, is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to offer packages of a flammable gas for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes not more than two cigarette lighters containing flammable gas to be packed in the same inner container, and provides no relief from any regulation other than as specifically stated.
2. BASIS. This exemption is based on Bic Corporation's application of July 30, 1982, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon.
3. HAZARDOUS MATERIALS (Descriptor and class). Cigarette lighters, containing a flammable gas fuel and equipped with an ignition element, classed as flammable gas.
4. PROPER SHIPPING NAME (49 CFR 172.101). Cigarette lighter.
5. REGULATION AFFECTED. 49 CFR 173.21 and 173.308.
6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle and rail freight.
7. SAFETY CONTROL MEASURES. Packaging prescribed is an individual pouch of flexible plastic material containing not more than two cigarette lighters. The lighters must be so placed in the pouch that they will not rotate more than 45 degrees in any axis. Pouches must be packed in inner containers made of solid fibreboard or equally rigid material. Inner containers must be overpacked in corrugated fibreboard boxes complying with the requirements of Rule 41, Uniform Freight Classification or Item 222, National Motor Freight Classification.
8. SPECIAL PROVISIONS. Persons who receive packages covered by this exemption may reship them pursuant to the provisions of 49 CFR 173.22a.
9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the Office of Hazardous Materials Regulation as soon as practicable.
10. EXPIRATION DATE. November 1, 1984.

Issued at Washington, D.C.:

Alan I. Roberts
Associate Director for
Hazardous Materials Regulation
Materials Transportation Bureau

NOV 30 1982
(DATE)

Address all inquiries to: Associate Director for Hazardous Materials Regulation, Materials Transportation Bureau, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: FHWA, FRA.